WEAK ARM OF THE LAW

The law ministry has taken steps to improve infrastructure, appoint more judges and reduce pendency of cases. But more needs to be done

By Kaushik Deka



Kiren Rijiju
Minister of Law and Justice

WHAT'S DONE

- The central infrastructure scheme has an outlay of Rs 9,000 crore, involves building court halls, digital computer rooms, toilets
- Notification of 10,000 Gram Nyayalayas, 3,000 eSewa Kendras, 165 Fast Track Special Courts to resolve Rape & POCSO Act cases
- Launch of Nyaya Bandhu, a Pro Bono Legal Services Programme, for the poor and Nyaya Mitra for disposal of 10-year-old cases
- More than 1,000 obsolete and redundant laws have been repealed
- Tele-law services in rural areas

CHALLENGES AHEAD

- National Litigation Policy for less government litigation not passed
- The 22nd law commission has still not been constituted
- The ministry shares part of the blame for slow judicial appointments
- Pendency up in lower courts

JUSTICE DELAYED IS JUSTICE DENIED, it's often said. In India, courts, crippled by shortage of manpower and poor infrastructure, often move at a snail's pace. More than 41 million cases are pending in lower courts, of which 76 per cent have been pending for over a year. Of the nearly six million cases pending in high courts, 85 per cent are older than a year. Not surprising, when judges have to function in abysmal conditions—only 27 per cent court rooms have computers placed on judge's dais for video conferencing; 26 per cent of court complexes do not have separate toilets for women and only 32 per cent of court rooms have separate record rooms.

Led by the energetic and young Kiren Rijiju, the law ministry has taken initiatives to reduce pendency, such as enhancing digital infrastructure and extending a centrally sponsored scheme to upgrade infrastructure. Initiatives such as tele-law service—a pre-litigation mechanism providing online dispute resolution advice at the panchayat level—are important too. But chronic issues like delay in judicial appointment, slow pace of reforms, friction between judiciary and the executive remain. Both the Chief Justice of India and Rijiju have spoken about making justice inclusive, affordable and fast. ■